

ORIGINAL

(S E R V E D)
(APRIL 20, 1990)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

April 20, 1990

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM

v.

**SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.**

PROTECTIVE ORDER OF CONFIDENTIALITY

On April 19, 1990, all the parties to this proceeding filed a Joint Motion for Protective Order pursuant to 46 CFR 502.201(i). Wherefore, it is,

Ordered, that:

1. Anyone submitting information in this proceeding may designate that information, in writing, or orally on the record at a deposition, prehearing conference or hearing, as confidential business information subject to this protective order, providing the designation as confidential business information is not refused or revoked by the commission or the

presiding Administrative Law Judge ("Judge"). The parties are admonished to make such designations only in instances of *bona fide* need for confidential treatment.

2. Documents containing confidential business information shall be clearly and prominently marked on their face with the label "CONTAINS CONFIDENTIAL BUSINESS INFORMATION SUBJECT TO PROTECTIVE ORDER." Each page of such document that contains such information shall be labelled "CONFIDENTIAL BUSINESS INFORMATION SUBJECT TO PROTECTIVE ORDER" in the upper right corner, and (where less than the entire page is confidential) shall clearly indicate what information on the page is confidential.

3. The distribution and dissemination of any information submitted pursuant to paragraph 1 above is limited to persons designated in paragraphs 5 and 6 below who first read this protective order and agree to be bound by the order's terms by executing and filing with the Secretary of the Commission a copy of Attachment A hereto.

4. Confidential business information shall be used only for the purposes of this proceeding (Docket No. 89-26), including any judicial review thereof.

5. In the absence of written consent from the submitter or an order by the Judge, any confidential business information submitted pursuant to paragraphs 1 and 3 above shall not be distributed or disclosed to any person other than:

(a) outside counsel and no more than two inside counsel for each party in this proceeding, including necessary paralegal, secretarial and clerical personnel assisting such counsel;

(b) qualified persons taking testimony involving such information and necessary stenographic and clerical personnel assisting such persons;

(c) consultants or experts who are not employed by, or otherwise affiliated with, a party in this proceeding and who are retained by a party or its counsel to assist in the preparation of a party's case; and

(d) the Judge, the Commission staff and personnel of any court or governmental agency as authorized by the Commission.

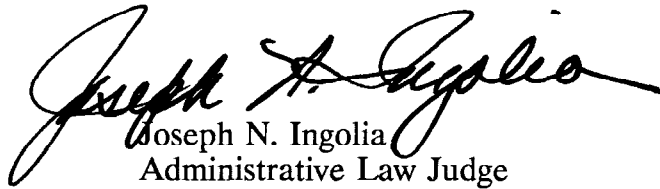
6. In addition, each party may notify the other parties that it intends to make confidential business information available to designated inside or affiliated experts or consultants, solely for the purpose of providing assistance in the preparation of the party's case. Such other parties shall inform the notifying party, within three working days, whether they object to such designation. In the absence of objection, such person shall be deemed designated pursuant to this paragraph, subject to all the terms and requirements of this protective order. The Judge shall rule in the case of any objections. Information submitted as confidential business information may be disseminated or distributed to persons not designated in paragraph 5 above, as the Judge determines or as all parties in this proceeding agree, and such persons shall be considered subject to all terms and requirements of this protective order.

7. If any confidential business information submitted in accordance with the foregoing paragraphs is disclosed to any person other than in the manner authorized by this protective order, the person responsible for the disclosure shall immediately bring all pertinent facts relating to the disclosure to the attention of all parties in this proceeding and the Judge and, without prejudice to other rights and remedies of the parties, make every effort to prevent further disclosure of the confidential business information.

8. In case of violations of this protective order, the Judge or the Commission, as appropriate, may impose any requirement or sanction generally or specifically authorized by law or regulation against the guilty person(s) or party(ies), including without limitation sanctions under 46 CFR 502.30.

9. This protective order, or any portion of it, may be altered, amended or rescinded by the Judge, the Commission or by the written consent of all the parties subscribing to it with the approval of the Judge or the Commission. The Commission or the Judge may determine that any information submitted as confidential business information is not *bona fide* confidential business information and shall not be subject to this order. If such a determination is made, the submitter must be afforded an opportunity to withdraw the information from the proceeding before the information can be made public.

10. Upon completion of the proceeding (including any judicial review), each person in receipt of confidential business information under this protective order shall, unless the submitter states in writing that such information is no longer confidential, within seven (7) working days assemble, and return or, with the agreement of the submitter, destroy and certify the destruction of, all confidential business information submitted in accordance with this order, including all copies of such information which may have been made. This paragraph shall not apply to any personnel of the Commission whose duties require retention of such information pursuant to statutory requirements and for other recordkeeping purposes, but they shall destroy any additional, unnecessary copies in possession of the Commission.


Joseph N. Ingolia
Administrative Law Judge

Attachment A

AGREEMENT TO ABIDE BY THE TERMS
OF THE PROTECTIVE ORDER

I acknowledge that I have read the protective order entered
on _____, 1990, in FMC Docket No. 89-26, and that I
understand its contents and hereby agree to abide by its terms and
conditions.

Name

Date

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